

April 17, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16081
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 1.4 and Division 4.1 hazardous materials in packaging that has not been tested in the same manner as if prepared for transportation. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.602(a) in that each packaging must be tested in the same manner as if prepared for transportation, except as provided herein.
5. BASIS: This special permit is based on the application of Cabela's LLC dated October 16, 2019, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Articles, pyrotechnic ¹	1.4G	UN0431	N/A
Cartridges for weapons, inert projectile or Cartridges, small arms	1.4S	UN0012	N/A
Cartridges, signal	1.4G	UN0312	N/A
Flares, aerial	1.4G	UN0403	N/A
Fuse, safety	1.4S	UN0105	N/A
Powder, smokeless ³	1.4C	UN0509	N/A
Primers, cap type	1.4S	UN0044	N/A
Primers, cap type	1.4B	UN0378	N/A
Propellant, solid ³	1.4C	UN0501	N/A
Signal devices, hand	1.4G	UN0191	N/A
Signal devices, hand	1.4S	UN0373	N/A
Signals, smoke	1.4G	UN0197	N/A
Smokeless powder for small arms ²	4.1	NA3178	I
Toy Caps	1.4S	NA0337	N/A

¹Use of this proper shipping name is limited to "12 Gauge Bear Alert BA-12), D/N: BA-12-DC" (EX2013090761).

²Use of this proper shipping name is limited to no more than 16 total pounds per package and no more than 100 pounds loaded into a transport vehicle.

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³Use of this proper shipping name is limited to 8 total pounds per inner package and no more than 16 total pounds per outer packaging.

7. SAFETY CONTROL MEASURES:

a. PACKAGING:

(1) Outer packagings are UN 4G fiberboard boxes meeting the following specifications:

(i) A 8.5" x 8.5" x 11" fiberboard shipper, Cabela's Spec. Box 1, described in Ten-E Packaging Services, Inc. Test Report 19-MN20294 (REV 1), dated July 23, 2019 and revised October 17, 2019 and Test Report 13-1308, dated October 6, 2013, on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD), with a gross mass not exceeding 6.5 kg.

(ii) A 17" x 10" x 12" fiberboard shipper, Cabela's Spec. Box 2, described in Ten-E Packaging Services, Inc. Test Report 19-MN20293 (REV 1), dated July 19, 2019 and revised October 17, 2019 and Test Report 13-1309, dated November 8, 2013, on file with OHMSAPD, with a gross mass not exceeding 11.3 kg.

(2) Inner packagings are products packaged for retail sale and consist of a variety of fiberboard boxes, shrink wrap packages, and plastic bottles containing the hazardous materials in accordance with § 173.62 for Division 1.4 materials and § 173.171 for Division 4.1 materials. Outer packagings may contain a combination of inner packagings that do not exceed the gross mass limits for the outer packaging or violate the requirements in paragraphs 7.a.(3) and (4).

(3) The explosives and the flammable solid shipped under this special permit must comply with the specific packaging requirements found in each EX approval for each respective commodity.

(4) This special permit does not waive the mixed packaging requirements in § 173.61 or the segregation requirements in § 175.78, § 176.144, and § 177.848.

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(5) All void spaces within the outer packaging must be filled with sufficient cushioning material to ensure minimum movement of the inner packagings.

b. TESTING:

(1) Each Division 1.4 material and Division 4.1 material must have a valid EX Approval number.

(2) Outer packagings must be tested with a free-flowing solid material filling at least 95% of the volume of the outer packaging.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each fiberboard box must be plainly and durably marked "DOT-SP 16081" as specified in § 172.301(c).

d. Transportation of Class 1 hazardous materials is not authorized aboard cargo-only aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

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special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KLEM/BenMOORE